Understanding Canadian law

Grade 11 · Answer Sheet C

Name: _____

Date: _____

Part 1

1. **d) Everyone, including the government, must follow the law** — What does the rule of law mean?
2. **a) Proportionality: the sentence fits the seriousness of the offence and the offender's responsibility** — What is the fundamental principle of sentencing in the Criminal Code?
3. **b) Parliament (federal)** — Which level of government makes criminal law in Canada?
4. **b) a snail said to be in a bottle of ginger beer** — The famous negligence case Donoghue v. Stevenson (1932) was about…
5. **c) 1985** — In which year did the equality rights in section 15 of the Charter come into force?
6. **b) the contract cannot be enforced against the minor** — A 16-year-old in Ontario signs a contract to buy a gaming console. In general…

Part 2

5 — The Civil Code of Québec comes into force (1994)

3 — The Canadian Bill of Rights is passed (1960)

4 — R. v. Morgentaler strikes down the Criminal Code's abortion provisions (1988)

1 — The Constitution Act, 1867 divides powers between Parliament and the provinces (1867)

2 — Parliament passes the first Criminal Code (1892)

Part 3

A government passes a law that limits a Charter right. Describe the steps a court uses to decide whether the limit is justified under section 1.

A good answer mentions: The Oakes test (1986): the limit must be prescribed by law; the law's objective must be pressing and substantial; the means must be proportionate: rationally connected to the objective, impairing the right as little as reasonably possible, and with benefits that outweigh the harmful effects. The government must prove this; if it fails, the law can be struck down to the extent of the conflict.

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